

1 STATE OF OKLAHOMA

2 2nd Session of the 60th Legislature (2026)

3 SUBCOMMITTEE RECOMMENDATION
4 FOR ENGROSSED

5 SENATE BILL NO. 1319

By: Frix of the Senate

and

6 Sneed of the House

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10 SUBCOMMITTEE RECOMMENDATION

11 [Corporation Commission - Revolving Fund -

12 expenditure - assistance - rules - codification -

13 emergency]

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16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 180.14 of Title 17, unless there
19 is created a duplication in numbering, reads as follows:

20 A. The Corporation Commission shall establish a process to
21 alleviate new and ongoing serious environmental emergencies through
22 which a homeowner whose residence has become contaminated by a
23 substance within the Corporation Commission's jurisdiction,

1 including, but not limited to, brine or oil, may apply for
2 remediation assistance.

3 B. 1. To request the use of funds from the Remediation
4 Assistance Revolving Fund created in Section 2 of this act, the
5 homeowner shall file an application to be considered by the
6 Corporation Commission. The Corporation Commission may hear the
7 application with or without notice.

8 2. After considering the evidence presented, the Corporation
9 Commission shall rule on the application and determine the amount of
10 remediation assistance necessary to remediate and abate the
11 environmental emergency.

12 3. The amount of remediation assistance may include the cost to
13 stop the substance from continuing the contamination, the cost of
14 removing and cleaning up the substance, and the cost of purchasing
15 the residence and property at fair market value. The Remediation
16 Assistance Revolving Fund shall not be used to pay for any damages.

17 4. Prior to any expenditure from the Remediation Assistance
18 Revolving Fund, the Corporation Commission shall comply with the
19 requirements set forth in Section 85.41A of Title 74 of the Oklahoma
20 Statutes.

21 5. If the Corporation Commission or other agency identified in
22 subsection C of this section determines that purchasing the
23 homeowner's property is the best course of action, title to the
24 property may be acquired and held by the city or county in which the

1 property is located. If the city or county chooses to acquire the
2 property, the city or county shall determine the fair market value
3 of the property. If removal of the residence is necessary, the city
4 or county shall facilitate removal of the residence. Once the
5 residence is removed and the presence of a well is confirmed, the
6 Corporation Commission shall remediate and abate the environmental
7 emergency. After the property is remediated, the city or county
8 shall sell the property and return all proceeds to the Remediation
9 Assistance Revolving Fund.

10 6. A homeowner's insurance claim shall not be required prior to
11 receiving remediation assistance provided pursuant to this
12 subsection. However, the homeowner shall in good faith pursue all
13 available homeowner's insurance claims and damage claims. All
14 proceeds received by the homeowner not related to damaged personal
15 property shall be reimbursed to the Remediation Assistance Revolving
16 Fund.

17 C. If, at any time, the environmental emergency is determined
18 by the Corporation Commission to not be within the Corporation
19 Commission's jurisdiction, or it is determined to be a naturally
20 occurring breakout, the matter shall be referred to the Department
21 of Environmental Quality and the Oklahoma Energy Resources Board to
22 remediate and abate the environmental emergency only if sufficient
23 funds exist in the Remediation Assistance Revolving Fund to perform
24 the remediation work or abatement.

1 D. The Corporation Commission shall promulgate rules to
2 effectuate the provisions of this section.

3 SECTION 2. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 180.15 of Title 17, unless there
5 is created a duplication in numbering, reads as follows:

6 There is hereby created in the State Treasury a revolving fund
7 for the Corporation Commission to be designated the "Remediation
8 Assistance Revolving Fund". The fund shall be a continuing fund,
9 not subject to fiscal year limitations, and shall consist of all
10 monies received by the Corporation Commission from any public or
11 private donations, contributions, and gifts received for the benefit
12 of the fund and any amounts appropriated by the Legislature
13 designated for deposit in the fund. All monies accruing to the
14 credit of the fund are hereby appropriated and may be budgeted and
15 expended by the Corporation Commission or the Department of
16 Environmental Quality for the purpose of providing remediation
17 assistance as provided for in Section 1 of this act. Expenditures
18 from the fund shall be made upon warrants issued by the State
19 Treasurer against claims filed as prescribed by law with the
20 Director of the Office of Management and Enterprise Services for
21 approval and payment.

22 SECTION 3. It being immediately necessary for the preservation
23 of the public peace, health or safety, an emergency is hereby
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1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

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